

# The Uyghur as ‘Homo Sacer’: An Analysis of the Potentially Largest Mass Incarceration Since the Holocaust



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## Introduction

If international media reports are to be believed, the People's Republic of China have detained approximately one million Uyghurs in what are known as 're-education' camps.<sup>1</sup> There are some sources stating that the number of detainees could be as high as three million<sup>2</sup> which the U.S. Congressional-Executive Commission on China calls "the largest mass incarceration of a minority population in the world today."<sup>3</sup> Due to the secrecy of the Chinese government, it is difficult to imagine what goes on behind closed doors. However, it will become evident that China's 'War on Terror' has led to the cultural genocide of Uyghur 'extremist' Muslims in the province of Xinjiang. In addition to this, we shall be examining the mistreatment of Uyghurs that takes place inside – as well as outside - these camps. The core focus of this thesis will be to analyse China's treatment of the Uyghurs from a biopolitical perspective but I will be primarily focusing on the works of both Foucault and Agamben.

One way I intend to analyse how China's 'War on Terror' has led them to mass incarceration and cultural genocide is through the application of Michel Foucault's theory of biopolitics. The biopolitics of the 'Global War on Terror' will be provided to explain the result of placing the term 'terrorist' onto the Muslim identity across the globe, which in turn has caused the Uyghurs to be deemed as counterproductive to society. I will also discuss how Foucault's theory on modern 'racism' can be applied and how it provides us with a reason for why the Chinese government is trying to promote a Han centric society. In addition to Foucault, I aim to apply Agamben to the situation in Xinjiang. He extends Foucault's theory of biopolitics

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<sup>1</sup> Khaled A Beydoun, 'China holds one million Uighur Muslims in concentration camps', *Aljazeera* (2018), <https://www.aljazeera.com/indepth/opinion/china-holds-million-uighur-muslims-concentration-camps-180912105738481.html>

<sup>2</sup> 'US accuses China of using 'concentration camps' against Muslim minority', *The Guardian*, (2019), <https://www.theguardian.com/world/2019/may/04/us-accuses-china-of-using-concentration-camps-uighur-muslim-minority>

<sup>3</sup> 'Chairs Urge Ambassador Branstad to Prioritise Mass Detention of Uyghurs, Including Family Members of Radio Free Asia Employees', *Congressional-Executive Commission on China*, (April 2018), <https://www.cecc.gov/media-center/press-releases/chairs-urge-ambassador-branstad-to-prioritize-mass-detention-of-uyghurs>

and we will see that his theorisation of ‘bare life’ plays a large role in contemporary politics. It will become clear that the status of ‘homo sacer’ (bare life) can be used to explain the harsh treatment of Uyghurs in the hands of the Chinese government. I also want to apply his theories on the ‘state of exception’ and the birth of concentration camps onto modern day China. Furthermore, I will analyse Agamben’s conception of the concentration camp and it will be made apparent that the Uyghur’s ‘re-education’ camps can be deemed as spaces in which the ‘state of exception’ has become localised and permanent.

Within this thesis, I will also be outlining a few case studies that will provide a greater understanding of the ill treatment of the Uyghurs. As they have been given the status of ‘homo sacer’, it will be made evident that they are put through physical and mental torture in these concentration camps and the government can do so ‘legally’. After outlining the People’s Republic of China’s treatment of the Uyghurs, I will also touch upon instances of what China has done to other groups of individuals who are deemed counterproductive to the health of their nation and place them in the context of biopolitics. Therefore, the overall aim is to use biopolitics to examine what is happening in Xinjiang as there is an excess amount of evidence that China is breaching the human rights of millions of citizens. A good place to begin is with a brief overview of the situation at hand.

## **Overview of the ‘Re-education’ Camps in the Xinjiang Region**

The Uyghurs – a Turkic speaking Muslim minority residing in the Chinese province of Xinjiang – are currently experiencing cultural genocide and detainment on a mass scale. Ever since the 9/11 terrorist attacks, the Chinese government joined the ‘Global War on Terror’ and adopted a strict anti-terror attitude. Even though there was very little evidence supporting the

fact that there were Uyghur militant groups internal and external of China's borders,<sup>4</sup> this was the narrative that the People's Republic of China tried to preach. The discourse they used switched from Uyghur ethnic separatism to it being a "breeding ground" for terrorism.<sup>5</sup> They started adopting policies to fight the 'war on terror' and the narrative and policies that were used were similar to that of the US.<sup>6</sup> It was made easier for China to target the Uyghurs as the 'other' due to the fact that they were Muslim: an identity that is connected with the threat of terrorism.<sup>7</sup> As a result of the 'terror' threat, President Xi Jinping took a hard-line approach in controlling the Muslim minority populations of Xinjiang, using very sophisticated surveillance, an increase in police presence and the opening of 're-education' camps to combat it.<sup>8</sup>

Also in Xinjiang, the number of Han occupants increased drastically between the years of 1949 through to 2008. The Han people are the majority ethnic group that resides in the People's Republic of China and as a result of this surge - which was mitigated by the State - the population of Han occupants within Xinjiang rose from a mere 220,000 (6.7%) to 8.4 million (40%) and such migration led to unrest within the province.<sup>9</sup> China wanted a culturally homogenous and unified state that followed the Han centric norms: ones of which fitted in with the Chinese nationalist Communist identity.<sup>10</sup> From about 2015 and onwards, China moved ahead with its plan to unify the religions and the term 'Sinicization' can be used to define the process. 'Sinicization' is the process where non-Chinese societies such as the Uyghur Muslims

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<sup>4</sup> Sean R. Roberts, 'The biopolitics of China's "War on Terror" and the exclusion of the Uyghurs', *Critical Asian Studies*, vol. 50, no. 2, (2018), pp. 233.

<sup>5</sup> K. B. Kanat, "'War on Terror" as a Diversionary Strategy: Personifying Minorities as Terrorists in the People's Republic of China', *Journal of Muslim Minority Affairs*, vol. 32, iss. 4, (2012), p. 507-527.

<sup>6</sup> Zainab Raza, 'China's "Political Re-Education" camps of Xinjiang's Uyghur Muslims', *Asian Affairs*, vol. 50, no. 4, (2019), p. 495.

<sup>7</sup> Ibid.

<sup>8</sup> Anna Hayes, 'Explainer: who are the Uyghurs and why is the Chinese government detaining them?', *The Conversation*, (February 2019), <https://theconversation.com/explainer-who-are-the-uyghurs-and-why-is-the-chinese-government-detaining-them-111843>

<sup>9</sup> A. Howell and C. Fan, 'Migration and Inequality in Xinjiang: A Survey of Han and Uyghur Migrants in Urumqi', *Eurasian Geography and Economic*, vol. 52, no. 1, (2011), p. 119.

<sup>10</sup> Farid Hafez, 'Unwanted Identities: The "Religious Line" and Global Islamophobia', *Development*, vol. 63, no. 2, (2012), p. 12.

are forcefully influenced by the culture of the Han Chinese as a means for them to adapt to the latter's culture, customs and way of life.<sup>11</sup> Therefore, we can translate this process as the de-Islamification of Uyghur practices, and such Sinicization has resulted in the mass internment of one to three million Uyghurs.



To fight the 'extremist' threat that the Uyghurs were displaying, the Chinese went a new direction in 2017 and began opening camps that Chinese officials classed as "vocational skill education training centres."<sup>12</sup> Their apparent use was to help Uyghur Muslims involved in minor crimes by offering them the ability to learn about the laws and regulations, in addition to learning skills that will help them in the world of work. This was done to prevent them from going down the route of terrorism and make it easier for them to merge into the collective

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<sup>11</sup> Sarmad Ishfaq, 'The Sinicization and Suppression of China's Muslim Uyghurs', *Foreign Policy Journal*, (November 2018), <https://www.foreignpolicyjournal.com/2018/11/23/the-sinicization-and-suppression-of-chinas-muslim-uyghurs/>

<sup>12</sup> Ben Westcott, 'China Legalises Xinjiang Re-education Camps After Denying they Exist', *CNN*, (October 2018), <https://edition.cnn.com/2018/10/10/asia/xinjiang-china-reeducation-camps-intl/index.html>

Chinese identity, language and culture (Han Chinese).<sup>13</sup> Therefore, the supposed purpose of the camps were to re-educate the Uyghur on how to be a Chinese citizen. However, the state has full control over the occupants of these camps and how they were taught – they were also unable to leave until the government allowed them to.<sup>14</sup>

The practices that could get you into these ‘re-education’ camps was based off a list that was created by government officials in 2017. There was 75 different ‘signs of extremism’ that could get you thrown into an internment camp. Some of them were outrageous, including having a long beard, buying or selling halal food or abstaining from alcohol for long periods of time.<sup>15</sup> There is a variety of evidence - which some will be analysed in the case study section below - that points towards the abhorrent amount of human rights violations that have resulted from these camps. There are reports of a series of deaths within the walls of these detention centres and instances of forced labour.<sup>16</sup> Escapees have mentioned that they experience both physical and psychological torture – they are “forced to renounce Islam, criticize their own beliefs, and recite Communist Party propaganda songs for hours each day,”<sup>17</sup> while there are other instances where the guards force inmates to eat pork and drink wine to renounce their faith to Islam.<sup>18</sup> Family members are disappearing and it has been mentioned that around 80% of the Uyghur population in Australia have had family disappear in these camps in Xinjiang.<sup>19</sup>

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<sup>13</sup> Raza, ‘China’s “Political Re-Education” camps of Xinjiang’s Uyghur Muslims’, *op. cit.*, pp. 496-497.

<sup>14</sup> *Ibid.*, p. 497.

<sup>15</sup> Farid Hafez, ‘Unwanted Identities: The “Religious Line” and Global Islamophobia’, *op. cit.*, p. 12.

<sup>16</sup> Anna Hayes, ‘Explainer: who are the Uyghurs and why is the Chinese government detaining them?’, *op. cit.*

<sup>17</sup> Sigal Samuel, ‘China is Treating Islam Like a Mental Illness’, *The Atlantic*, (August 2018), <https://www.theatlantic.com/international/archive/2018/08/china-pathologizing-uyghur-muslims-mental-illness/568525/>.

<sup>18</sup> ‘China rolls out PR push on Muslim internments’, *Agence-France Presse*, (October 2018), <https://au.news.yahoo.com/china-rolls-pr-push-xinjiang-internment-camps-050627161-spt.html?guccounter=1>

<sup>19</sup> Kate Lyons, ‘A community in unbelievable pain: the terror and sorrow of Australia’s Uighurs’, *The Guardian*, (November 2018), <https://www.theguardian.com/australia-news/2018/nov/28/a-community-in-unbelievable-pain-the-terror-and-sorrow-of-australias-uighurs>

## Foucault: Biopolitics and China's War Against the Uyghurs

To gain a better understanding of the biopolitics of China's 'war on terror', I will begin by outlining what Foucault means by modern 'racism'. For a state like China, they have the ability to warrant not only the death of enemies outside of their rule, they also have the power to warrant the death of those deemed their own citizens – this is done through the intervention of racism.<sup>20</sup> As we have moved into a more modern era, the racism is much more directed towards the population that is under the state's rule, not those which are out it. This is what Foucault describes as being modern racism.<sup>21</sup> Therefore, modern racism is internal racism against "the abnormal, against individuals who, as carriers of a condition, a stigmata, or any defect whatsoever, may more or less randomly transmit to their heirs the unpredictable consequences of the evil, or rather of the non-normal, that they carry within them."<sup>22</sup> We can see that the People's Republic of China is racist as they try to kill off the Uyghur Muslim culture and turn Xinjiang into a Han centric society. Therefore, modern racism in China is racism against the Uyghurs who have been labelled as 'terrorists' and are believed to be a threat to the flourishing of the state. Foucault himself uses Nazism as an example of the tenacious biological regulation that occurs within a racist government.<sup>23</sup> In Nazi Germany, they believed the Jews were the main cause of the problems of their state; in Xinjiang, the Chinese government saw the Uyghur culture as the reason that Muslims turned towards terrorism.

Racism towards the state's own citizens "is concerned with race in so far as it is a racism that seeks to protect 'the race', even in cases where those it needs to protect itself against are its own deviant members."<sup>24</sup> Racism within the state makes it possible for biological policies

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<sup>20</sup> Michel Foucault, *Society Must Be Defended: Lectures at the Collège de France 1975-1976*, 2003 ed., (New York: Picador, 1976), p. 74.

<sup>21</sup> Ibid.

<sup>22</sup> Foucault, cited in C Taylor, 'Race and Racism in Foucault's Collège de France Lectures', *Philosophy Compass*, vol. 6, no. 11, (2011), p. 748.

<sup>23</sup> Foucault, *Society Must Be Defended*, p. 77.

<sup>24</sup> Taylor, 'Race and Racism in Foucault's Collège de France Lectures', p. 749.



to impinge on the lives of the state's population, which leads the state to validate and encourage the wellbeing of one particular race while not endorsing the same for the other.<sup>25</sup> We can see this in China's narrative of the ideal Han centric society that everyone in Xinjiang should abide by and through their treatment towards the Uyghurs. It seems as though there is biological warfare within the Chinese state, and this is justified as the state deems it as being the greater good of the country and the promoted Han culture. It seems as though China holds the belief that "we have to defend society against all biological threats posed by the other race, the subrace..."<sup>26</sup> Foucault here is basically stating that in order for one race to live, the other race has to be allowed to die, while also believing that racism created the "condition for the acceptability of putting to death."<sup>27</sup> In terms of the Chinese government, this means that they believe the only way to stop the imminent threat of terrorism to keep the Chinese safe is if they are sent to concentration camps as a means to make sure the Islamic culture dies.

What is also useful in understanding how the Uyghurs were put in the position they are in, it is useful to look into the biopolitics of the 'Global War on Terror'. In the work of Roberts, he highlights – through Michel Foucault – how biopolitics can be defined as politics with a focal point on the productive force of citizens as either being productive or unproductive to the government.<sup>28</sup> Those that constitute as the productive bodies within a state are perceived as the object of governance and a critical pawn in the hands of the state, but those deemed as unproductive citizens are seen as a danger to the government and therefore should be "banished, excluded and repressed," with the help of the productive citizens that are doing their duty for the state.<sup>29</sup> The biopolitical state perceives itself as a living organism, with the productive citizens being what keeps it healthy while the unproductive or counter-productive

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<sup>25</sup> Erin Jade Twyford, *The State in pursuit of thanatopolitics: Accounting and the citizenry*, (University of Wollongong, 2018), <https://ro.uow.edu.au/thesis1/569>, p. 115.

<sup>26</sup> Foucault, *Society Must be Defended*, p. 61.

<sup>27</sup> Foucault cited in A Mbembe, 'Necropolitics', *Public Culture*, vol. 15, no. 1, (2003), p. 17.

<sup>28</sup> Roberts, 'The biopolitics of China's "War on Terror" and the exclusion of the Uyghurs', pp. 234-235.

<sup>29</sup> Foucault, *Society Must Be Defended*, p. 32.

are treated as a potential infection – something that should be excluded in society.<sup>30</sup> Such an image of government is made apparent when we look into the objective of wars in a biopolitical system:

“The enemies who have to be done away with are not adversaries in the political sense of the term; they are threats, either external or internal, to the population and for the population...in other words, killing or the imperative to kill is acceptable only if it results not in a victory over political adversaries, but in the elimination of the biological threat to...the species or race.”<sup>31</sup>

Within the wider context of the ‘Global War on Terror’, the terrorist enemy are deemed as unlawful and illegitimate - those of which do not deserve the rights for a ‘civilised’ life.<sup>32</sup> The terrorist enemies are therefore excluded from the state as they are deemed as counter-productive to society, meaning that they are not welcome as the state aims to be healthy for the benefit of the rest of the productive citizens.<sup>33</sup> The ‘Global War on Terror’ has led to the idea that terrorism is not seen as a threat to one particular state but as a threat to the global society and our humanity as a whole. However, the problem with the ‘Global War on Terror’ is that there has been a shift on who is perceived as a Muslim terrorist and who is not, so the world has begun to perceive that all Muslims as a biological group are capable of becoming terrorists.<sup>34</sup>

We can see this in the People’s Republic of China and the surfacing of a biopolitics of exclusion as a response to the supposed threat of the Uyghurs to the whole of China. Here, there is a racialised ‘othering’ where the Uyghur Muslims of Xinjiang are portrayed as citizens that are intrinsically different to the national ethnicity, and so it has been normalised to see them as the dangerous ‘other’. Therefore, the Uyghur Muslims of Xinjiang who have been placed with the label of ‘terrorist’ are being ever more excluded from wider society by being

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<sup>30</sup> Roberts, op., cit, p. 235.

<sup>31</sup> Foucault, *Society Must Be Defended*, p. 256.

<sup>32</sup> Roberts, op. cit.

<sup>33</sup> Ibid.

<sup>34</sup> Ibid.

placed in camps away from the productive citizens of society. In addition to this, the ‘Global War on Terror’ has given the Chinese government the ability to dictate the Uyghur identity and rebuild it to fit their agenda – ethnic cleansing has become a social norm in Xinjiang.

We can also observe how the People’s Republic of China see the Uyghur Muslims as a biological threat through their use of language. In a batch of leaked documents of how China had organised the mass detention of Muslims, there are multiple examples of Chinese officials likening Islam to a virus.<sup>35</sup> Within these texts, it was quoted that “Freedom is only possible when the ‘virus’...is eradicated” in addition to stating that the Uyghurs had “been infected by unhealthy thoughts.”<sup>36</sup> This shows us that as a result of the Uyghurs being labelled as terrorists, they are portrayed as a biological threat to the state in a similar fashion to a virus that needs to be “eradicated, quarantined or cleansed from those it infects.”<sup>37</sup> This is worryingly very similar to the vocabulary the Nazis used when describing the reasoning behind their harsh treatment of the Jews. Medical metaphors were very popular, calling the Jewish population a “malignant tumour” or a “communicable plague.”<sup>38</sup> It makes you wonder whether China are on a similar path to the Nazis which will result in the elimination – or the genocide – of the Uyghurs.

## **Agamben: Uyghur as ‘Homo Sacer’**

Within the works of Giorgio Agamben, he further extends Foucault’s theory of biopolitics and provides us with the idea that the ultimate technology of biopower are concentration camps.<sup>39</sup> For both Foucault and Agamben, they focus on the connection between

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<sup>35</sup> Austin Ramzy and Chris Buckley, ‘Absolutely No Mercy: Leaked Files Expose How China Organised Mass Detentions of Muslims’, *New York Times*, (Nov 2019), <https://www.nytimes.com/interactive/2019/11/16/world/asia/china-xinjiang-documents.html>

<sup>36</sup> Ibid.

<sup>37</sup> Roberts, ‘The biopolitics of China’s “War on Terror” and the exclusion of the Uyghurs’, p. 234.

<sup>38</sup> Arch Puddington, ‘Beijing’s Persecution of the Uyghurs is a Modern Take of an Old Theme’, *The Diplomat*, (May 2019), <https://thediplomat.com/2019/05/beijings-persecution-of-the-uyghurs-is-a-modern-take-on-an-old-theme/>

<sup>39</sup> Giorgio Agamben, *Homo Sacer: Sovereign Power and Bare Life* (Palo Alto, CA: Stanford University Press, 1998).

how the biopolitics of a state can lead to destruction of an ethnic minority as a means of keeping the state unified.<sup>40</sup> Ever since the horrors that occurred on 9/11, Agamben's examination into sovereignty, the state of exception and his conception of the 'homo sacer' (the 'sacred' or bare-life) can be directly applied to the political issues of the modern era: namely the 'Global War on Terror'. As a result of modernity, the camp is the paradigm of all modern politics and China's 'War on Terror' shows us how China can reassert a sort of state sovereignty that globalisation was supposed to be rendering unnecessary.<sup>41</sup> Such theories are heavily applicable to the situation Uyghur Muslims are in at the moment with the creation of the 're-education' camps and a good place to begin with Agamben is understanding his concept of 'Homo Sacer' (bare-life).

In order to gain an understanding of Agamben's theory, it is important to take note that within a state, there is always a paradox that arises: the state is placed within law but also placed above the law. The rule of law is warranted by a practice of supreme power that rises above the law.<sup>42</sup> Agamben states that:

"...the sovereign is 'at the same time outside and inside the juridical order'...the sovereign, having the legal power to suspend the validity of the law, legally places himself outside the law. This means that the paradox can also be formulated this way: 'the law is outside itself' or 'I, the sovereign, who am outside the law, declare that there is nothing outside the law...'<sup>43</sup>

This paradox of the supreme power of the state occurs as a result of needing a final say of what counts within the law but not having a final figure to be instructed by any law prior to it. As a result of this paradox, this gives birth to the 'homo sacer' (the "sacred" or "accursed" man), which is a human being that is worn down to bare-life, is outside the protection of the state and

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<sup>40</sup> Michael A. Peters, 'Giorgio Agamben's Homo Sacer Project', *Educational Philosophy and Theory*, vol. 46, no. 4, (2014), p. 331.

<sup>41</sup> Ibid., p. 330.

<sup>42</sup> Lana Zannettino, 'From Auschwitz to mandatory detention: biopolitics, race and human rights in the Australian refugee camp', *The International Journal of Human Rights*, Vol. 16, No. 7, (2012), p. 1098.

<sup>43</sup> Agamben, *Homo Sacer*, p. 15.

loses his rights within it.<sup>44</sup> The homo sacer is connected back to the supreme power of the state as “the sovereign sphere is the sphere in which is permitted to kill without committing homicide and without celebrating a sacrifice.”<sup>45</sup> Therefore, the homo sacer not only has their legal and civic rights removed from them, they are also still controlled by the state. The state is above and within the law, and so can do whatever they please with them without any legal ramifications. The homo sacer is included yet excluded from the polity and this is the same position as sovereignty, which is why “the fundamental categorical pair of Western politics is not that of friend/enemy but that of bare life/political existence, *zoē/bios*, exclusion/inclusion.”<sup>46</sup>

Even though China does not follow Western politics, it can still be applied to their position so this means that in the People’s Republic of China, the Uyghur is the Homo Sacer as they are stripped away from the protection of the Chinese government and yet are still controlled by them – the government is acting above the law yet within it. Muslim terrorists were given the status of homo sacer as a result of the ‘Global War on Terror’, but as mentioned previously, it seems as though the status of homo sacer has been given to the whole Muslim population.<sup>47</sup> They are labelled as ‘terrorists’ in Non-Muslim countries, whether they are or not. This transition has stemmed from the ongoing ‘Global War on Terror’, which has led to the Chinese government retaliating to the Uyghur terrorist threat. As China are labelling all Uyghur Muslims as ‘terrorists’, this means that they have been given the status of homo sacer within the state. Even though they are not banished officially, their legal rights have been revoked and have been labelled as dangerous to society.

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<sup>44</sup> Zannettino, *op. cit.*, p. 1099.

<sup>45</sup> Agamben, *op. cit.*, p. 83.

<sup>46</sup> *Ibid.*, p. 8.

<sup>47</sup> Roberts, ‘The biopolitics of China’s “War on Terror” and the exclusion of the Uyghurs’, p. 236.

## Birth of the Uyghur ‘Re-education’ Camps

By expanding upon Agamben’s theory of the homo sacer, it can be argued that the People’s Republic of China is working in a “state of exception” which he defines as the “original structure in which law encompasses living beings by means of its own suspension”<sup>48</sup> As mentioned earlier, the state cannot commit murder towards the homo sacer and this represents the paradoxical manner in which the state and the homo sacer simultaneously stand inside and outside the law. It doesn’t count as homicide because the ‘state of exception’ creates an area where the state can destroy the homo sacer without breaking the law, and this idea can also be placed in relation to the Uyghurs: the state of exception gives the state the ability to detain citizens in a way that would normally be deemed as illegal which can still be done in a ‘lawful’ manner – by claiming that the Uyghur terrorist threat is a crisis.

To further clarify what ‘state of exception’ means, Agamben suggests that it is a “legal form which cannot have legal form”<sup>49</sup> which is triggered in times of emergency that threaten the health of a nation. For example, the Uyghur terrorist threat in the province of Xinjiang led them to declare a state of exception which means that “the normative aspect of law can thus be obliterated and contradicted with impunity by a governmental violence that – while ignoring international law externally and producing a permanent state of exception internally – nevertheless still claims to be applying the law.”<sup>50</sup> In Xinjiang, this means that the Chinese government has created an area where it is basically lawless; an area where the Uyghurs lack any human rights and do not have the capacity to fight back against it. This area encompasses the homo sacer (the Uyghur) and exposes them to the wrath of the Chinese government while still being an area that is protected by the constitution. China believe the Uyghurs to be a

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<sup>48</sup> Giorgio Agamben, *The State of Exception*, trans. Kevin Attel, (London:University of Chicago Press, 2005), p. 3.

<sup>49</sup> Ibid., p. 1.

<sup>50</sup> Ibid, pp. 86-87.

terrorist threat and declares a state of exception which “claims to maintain the law in its very suspension, but produces instead a violence that has shed every relation to law.”<sup>51</sup>

However, when laws are suspended in a state of exception, this does not necessarily mean that this is done on a short term basis.<sup>52</sup> Agamben argues that a state of exception can be a long-lasting setup that allows a state to run outside the realm of law for an extended amount of time. He suggests that this was the case during the rule of the Third Reich in Germany:

“The entire Third Reich can be considered a state of exception that lasted twelve years. In this sense, modern totalitarianism can be defined as the establishment, by means of the state of exception, of a legal civil war that allows for the physical elimination not only of political adversaries but of entire categories of citizens who for some reason cannot be integrated into a political system.”<sup>53</sup>

What we can uncover from Agamben’s statement here is that there is no time frame for how long a nation can be in a state of exception for. Like the Third Reich, the Chinese government is trying to wipe out an “entire category of citizens” and is done so for the apparent safety of the state. As a result of the state of exception, this can be done so ‘legally’ and can continue for however long it takes to erase the Muslim culture from the Uyghurs.

In addition to this, Agamben would argue that the Chinese ‘re-education’ camps can be deemed as a “space that is opened when the state of exception begins to become the rule.”<sup>54</sup> The state of exception becomes localised to a particular area: the camps. However, unlike normal prisons, it seems as though there are no minimum standards for these ‘re-education’ camps that are placed under scrutiny to China’s laws.<sup>55</sup> What this means is that unlike a normal prisoner, the Uyghur is in a much more perilous position because they do not hold the same rights as the other Chinese citizens. They hold the status of the *homo sacer* which means that

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<sup>51</sup> Ibid, p. 26.

<sup>52</sup> Zannettino, ‘From Auschwitz to mandatory detention: biopolitics, race and human rights in the Australian refugee camp’, p. 1099.

<sup>53</sup> Agamben, *State of Exception*, p. 2.

<sup>54</sup> Agamben, *Homo Sacer: Sovereign Power and Bare Life*, p. 63.

<sup>55</sup> Zannettino, p. 1100.

they are detained by law but are deemed to be left outside the protection of the Chinese government. With the camps, we can see the state of exception in space; the ‘re-education’ camps have a spatial arrangement and so become a space that is a permanent state of exception.<sup>56</sup> When the Uyghurs are placed in these camps, they are in there for an indefinite amount of time and are treated inhumanly by the Chinese government. The Uyghurs – who are given the status of homo sacer – are dehumanised in these spaces because the horrors that occur are not based on law; they are based on the moral codes of the guards who are the government’s representatives that authorize its rules.<sup>57</sup>

## **Case Studies into the Treatment of the Uyghurs**

After researching the type of treatment the Uyghurs experience within the walls of these ‘re-education’ camps, it has come apparent that they are treated like animals. Within this permanent and localised state of exception – where they are stripped of their human rights – it will become evident that abhorrent acts are taking place that anyone would deem as truly evil. While being placed outside the realm of Chinese law, we will uncover the numerous accounts of physical and psychological torture experienced by the Uyghurs. Due to the secrecy of the Chinese government, it has been difficult to gain an understanding of the true extent of their ill treatment but it has been possible to build a portfolio of case studies that point towards the extent of the cruelty the Uyghurs are put through. Foucault’s theory of biopolitics and Agamben’s extension of his theory will be assigned onto such examples. This will be done and make evident the fact that the People’s Republic of China is becoming a neo-totalitarian state.

In this section, I will be going through some of these case studies and make evident the malice crimes that China’s ‘state of exception’ has allowed. In addition to this, there have been

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<sup>56</sup> Ibid.

<sup>57</sup> Ibid.



multiple events that have been recorded where citizens other than the Uyghur have been seen as counterproductive to the state and assigned the status of ‘homo sacer’ by the Chinese government, and it will be shown that they have been assigned this status as a result of a lack of obedience to their authoritarian regime. I am making these actions apparent to build a picture of the crimes they have committed once such citizens are stripped down to ‘bare life’. Not only is cultural genocide an abhorrent crime against humanity, these case studies will highlight the other evils that China have committed as well.

### Case Study 1: Forced Abortions and Sexual Torture of Uyghur Woman

There is a large array of evidence from escapees that they were forced to have abortions, while others were made to be implanted with contraceptive devices. There was an instance where a 10 week pregnant mother was detained for possessing WhatsApp on her phone. After being placed under house arrest in Xinjiang, she was forced to get her foetus removed without anaesthesia.<sup>58</sup> There are also reports that Uyghur women were raped and impregnated by Han Chinese guards, with other Muslim women stating that they were forced to put a chili powder mix on their genitals as a form of sexual torture in the camps.<sup>59</sup> Even though it is not possible to verify these stories, such stories are very common according to local rights groups stating that it expresses a wider sequence of torture that aims to limit their ability to reproduce.<sup>60</sup>

Using Foucault’s theory of biopolitics, we can deduce that in China’s biopolitical system, the unproductive citizens need to be banished, excluded or repressed. The Uyghur woman and their unborn child in this instance are seen as unproductive/counterproductive; they are seen as potential infections to society. Therefore, the productive Chinese citizens are doing

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<sup>58</sup> Amie Ferris-Rotman, Aigerim Toleukhan, Emily Rauhula and Anna Fifield, ‘China accused of genocide over forced abortions of Uighur Muslim women escapees reveal widespread sexual torture’, *The Independent*, (October 2019), <https://www.independent.co.uk/news/world/asia/china-uighur-muslim-women-abortions-sexual-abuse-genocide-a9144721.html>

<sup>59</sup> Ibid.

<sup>60</sup> Ibid.

their duty to the Chinese government to rid the biological threat to society through these examples of forced abortions and sexual torture. With the forced abortions and the implantation of contraceptives, they are reducing the potential biological threat from growing, which means that stopping the women from giving birth will keep the biopolitical state healthy.

## Case Study 2: Organ Farming of Detainees

There is a growing amount of evidence of forced organ harvesting of Uyghurs that have been taking place in camps.<sup>61</sup> The specific groups that the Chinese government are targeting include the Uyghurs and practitioners of Falun Gong,<sup>62</sup> where eye-witness accounts have stated that the organs are taken while the detainee is still very much alive. A former Chinese medical intern - who had fled to Canada after the experience – stated that when he was placed on the organ harvesting operation, the detainee was tied up so he couldn't move and was brought into the dissection room. It was here where they cut the prisoner from chest to stomach so the kidneys could be removed from him while he was still alive.<sup>63</sup> An independent tribunal sitting that occurred in London came to the conclusion that China are still murdering detainees and harvesting their organs. They had found evidence that within the 're-education' camps of Xinjiang, they were "being used as a bank of organs" and were also subjected to involuntary medical testing.<sup>64</sup> The organ harvesting trade is very profitable to the nation of China, and the tribunal made it apparent that it earns them around £801.4 million a year.<sup>65</sup>

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<sup>61</sup> Adam Withnall, 'China is killing religious and ethnic minorities and harvesting their organs, UN Human Rights Council told', *The Independent*, (September 2019), <https://www.independent.co.uk/news/world/asia/china-religious-ethnic-minorities-uyghur-muslim-harvest-organs-un-human-rights-a9117911.html>

<sup>62</sup> Clare Wilson, '15 studies retracted due to fears they used Chinese prisoner's organs', *New Scientist*, (August, 2019), <https://www.newscientist.com/article/15-15-studies-retracted-due-to-fears-they-used-chinese-prisoners-organs/>

<sup>63</sup> Steven W. Musher, 'Chinese dissidents are being executed for their organs, former hospital worker says', *New York Post*, (June 2019), <https://nypost.com/2019/06/01/chinese-dissidents-are-being-executed-for-their-organs-former-hospital-worker-says/>

<sup>64</sup> Adam Whitnall, 'China is killing religious and ethnic minorities and harvesting their organs, UN Human Rights Council told', op., cit.

<sup>65</sup> Ibid.

When we look at organ harvesting from a biopolitical perspective, it seems as though China are using the detainees in this manner for the greater benefit of the state. It is very profitable to their nation so they are allowing this to happen. They are not only getting rid of those who are deemed counterproductive, they are allowing the productive – and society as a whole - to thrive from this industry. The Chinese government can exempt itself from the law and so they are able to strip the detainees down to bare life and exclude them from the laws that protect the rest of the Chinese citizens; placed in a position where they lack any human rights. Organ harvesting is able to occur to the detainees because they are outside the human made juridical order – they are dehumanised by the doctors who represent the government’s rules. However, it is important to take note that this does not count as murder as both the government and the detainee (the homo sacer) are placed outside the law.<sup>66</sup> If no humanitarian intervention is put in place to prevent such acts from occurring, the government can ‘legally’ carry on removing organs from subjects who were alive prior the procedure.

### Case Study 3: The ‘709 Crackdown’ (Non-Uyghur Example)

Beginning on 9 July 2015 (hence the name ‘709 crackdown’) and throughout the rest of the month, China had initiated a carefully planned detention campaign of over 300 human rights lawyers and human rights defenders.<sup>67</sup> It is said that what caused the ‘709 crackdown’ was the fatal shooting of a petitioner by a police officer, leading to a lot of controversy over the shooting where there were questions raised over the legitimacy of the killing. The incident opened up a debate on the unnecessary use of police force which caused a social-legal movement of lawyers and activists that tried to dishonour the police and hold them

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<sup>66</sup> Agamben, *Homo Sacer*, p. 83.

<sup>67</sup> Diyar Güldogan, ‘EU urges China to abide international law on 709 crackdown: 28-member block calls on China to respect rights of all citizens as guaranteed by China’s constitution’, *Anadolu Agency*, (July 2019), <https://www.aa.com.tr/en/asia-pacific/eu-urges-china-abide-international-law-on-709-crackdown/1527224>

responsible.<sup>68</sup> China responded to such claims by detaining those who spoke up against the state.

In August of 2016, a number of the human rights defenders stood trial and the trial was partially televised. Those who were placed on trial included only government-approved lawyers in addition to having an audience that was hand-picked by the government, while friends and family of the defendants were almost always not permitted to enter. Out of the minority who have been able to speak about the experience afterwards mentioned that they had been tortured and forcibly medicated.<sup>69</sup> Even now, a number of the human right lawyers and activists are still being detained, and so the EU has urged China to abide by international law and allow the accused a proper defence.<sup>70</sup>

Here is another instance of the government reducing those who fight back against China's authoritarian rule down to bare life. If they decide not to submit to the state, this triggers a state of emergency and allows China to exclude the human rights lawyers and activists from the protection of their nation. Similar to the organ harvesting case study, the government and the homo sacer are both placed outside the laws of the state. However – as the human rights lawyers and activists are still controlled by China – the homo sacer must abide by the actions of the state even when they are outside the realm of what is normally classed 'legal'. For example, the human right lawyer Zhou Shifeng and democracy activist Hu Shigen were given a lengthy sentence of seven to seven and a half years in prison for 'subversion'.<sup>71</sup> They were given this sentence for fighting for the rule of law but were silenced by the Chinese government. They were not given a fair trial and on other cases, there is a high volume of

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<sup>68</sup> Hualing Fu, 'The July 9<sup>th</sup> (709) Crackdown on Human Rights Lawyers: Legal Advocacy in an Authoritarian State' *Journal of Contemporary China*, Vol. 27, no. 112, (2018), pp. 554-555.

<sup>69</sup> Eva Pils, 'The Public's Turn to Public Repression: An Analysis of the 709 crackdown on Human Rights Lawyers in China', *China Law and Society Review*, vol. 1, no. 48, (Brill: 2018), p. 2.

<sup>70</sup> Diyar Güldogan, op., cit.

<sup>71</sup> 'China on '709' anniversary, legal crackdown continues', *Human Rights Watch*, (July 2017), <https://www.hrw.org/news/2017/07/07/china-709-anniversary-legal-crackdown-continues>

people who experienced torture in the hands of the guards.<sup>72</sup> The lawyers and activists were given the status of homo sacer where human rights have no meaning - the government in this state of exception are able to go above the law and do as they please. I wanted to use this case study to highlight the fact that the Uyghurs are not the only group that are seen as a 'threat' to China. It seems as though anyone that threatens the flourishing of Xi Jinping's China are deemed as counterproductive to its health, which results in them being suppressed and reduced to the status of homo sacer.

## Conclusion

After inspection of the current situation the Uyghurs are in, my core focus was to analyse the ill treatment of the Uyghurs and the birth of the 're-education' camps from a biopolitical perspective. I began with an overview that examined the current situation in the People's Republic of China; especially in the province of Xinjiang. I made China's justifications for the camps clear and brushed upon the cultural genocide of the Uyghurs. Through Foucault's theory of biopolitics, it was shown how the 'Global War on Terror' placed the counterproductive label 'terrorist' onto the Uyghur Muslim population, which in turn, led to their exclusion from the rest of China. The idea that the Chinese government see Uyghurs as a threat against the health of the state and its productive inhabitants plays a crucial role in their treatment of the Uyghurs. Through the application of Agamben onto the situation, I have shown that China is working in a state of exception (emergency) and are trying to get rid of the 'terrorist' threat. By reducing them down to bare life (homo sacer), China is violating the human rights of millions of Uyghurs and are able to do so due to the paradox of sovereign power.

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<sup>72</sup> Ibid.

From the evidence that is provided in the case studies, it seems as though Xi-Jinping is on the road towards making China a neo-totalitarian state, and analysis of the biopolitics of this situation shows the process in which a country can abuse its powers over particular counterproductive citizens. This work is valuable as through the use of biopolitics, we can begin to understand how a democratic state like China can eventually become a neo-totalitarian nation. Agamben states that “modern totalitarianism can be defined as the establishment, by means of the state of exception, of a legal civil war that allows for the physical elimination...of entire categories of citizens who for some reason cannot be integrated into a political system.”<sup>73</sup> If they carry on in the direction they are going, it is quite likely that history will be repeated and we will observe something similar to that of the Nazi regime. China – if left to their own devices – have the potential to exterminate the Uyghurs on a very large scale.

The Uyghur’s Islamic faith is deemed as counterproductive to society and the source of their ‘terrorist’ problems in the eyes of the Xi Jinping and the Chinese government. What has been previously mentioned in the thesis is that Agamben believed that the concentration camp was the paradigm for all modern politics<sup>74</sup> and this is something that we can clearly see in the birth of these ‘re-education’ camps. What is worrying is that China has become an economic superpower: they are currently the second richest in the world but by 2030, they are predicted to be the first.<sup>75</sup> As a result of the state’s economic strength, many countries such as Saudi Arabia and Pakistan are allowing this to happen as they have economic ties with China.<sup>76</sup> There isn’t much in the way of China taking the next step. Muslim countries with economic ties are

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<sup>73</sup> Agamben, *State of Exception*, p. 2.

<sup>74</sup> Michael A. Peters, op. cit., p. 331.

<sup>75</sup> Ariel Zilber, ‘United States will drop to become the THIRD world’s largest economy behind China and India by 2030, new financial rankings suggest’, *Daily Mail*, (Jan 2019), <https://www.dailymail.co.uk/news/article-6575793/China-worlds-largest-economy-2030-India-surpass-U-S.html>

<sup>76</sup> Sarah Leduc, ‘Muslim countries’ silence on China’s repression of Uighurs’, *France 24*, (November 2019), <https://www.france24.com/en/20191127-china-communist-uighurs-xinjiang-muslim-silence-camps-repression>

not standing up against the cultural slaughter of the Uyghur Muslim population<sup>77</sup> which speaks volumes about the nature of humanity.

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<sup>77</sup> Ibid.

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